

Cirque Corporation

Privacy Policy (Asia Localized)

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1. Purpose

The purpose of this policy is to define Cirque's specific requirements for protecting the privacy of personal information collected, processed, and stored within its operations in the Asia region, particularly focusing on ****China**** and ****Taiwan****. This policy supplements the IS-CIRQ-P-017-G: Privacy Policy (Global Core) by addressing region-specific privacy laws and regulations, ensuring compliance and fostering trust with individuals whose data we handle in these jurisdictions.

****2. Scope****

2. Scope

This policy applies to all Cirque personnel, business processes, systems, applications, and networks located within or primarily serving China and Taiwan, that are involved in the collection, use, storage, transmission, and disposal of personal information related to residents of these regions. It covers all types of personal information, including

employee data, customer data, and vendor data within these jurisdictions.

****3. Definitions (Asia-Specific)****

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- ****Personal Information (PI):**** As defined in the Global Core Policy, but specifically acknowledging the broader definitions and sensitive categories defined under China's Personal Information Protection Law (PIPL) and Taiwan's Personal Data Protection Act (PDPA).

- ****Sensitive Personal Information (China PIPL):**** Personal information that, once leaked or illegally used, may easily lead to infringement of the personal dignity of natural persons or serious harm to personal or property safety (e.g., biometric data, religious beliefs, medical health, financial accounts, whereabouts, etc.). Strict rules apply to its processing.

- ****Data Controller (Taiwan PDPA):**** A government agency, public school, or association, or a juridical person or natural person that collects, processes or uses personal data.

- ****Cross-Border Transfer:**** Transfer of personal information outside the territory where it was collected (e.g., from China to the US).

****4. Asia-Specific Privacy Principles and Requirements****

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In addition to the global principles outlined in IS-CIRQ-P-017-G: Privacy Policy (Global Core), Cirque adheres to the following Asia-specific requirements:

****4.1. Compliance with China's Laws (Key focus: PIPL, CSL, DSL):** a.**

****Personal Information Protection Law (PIPL):** * **Legal Basis:****

Ensure clear legal basis (e.g., consent, contract, legal obligation) for processing personal information, with explicit and separate consent required for sensitive personal information, public disclosure, or cross-border transfers. * **Purpose & Necessity:** Strict adherence to purpose limitation and data minimization; processing must be for a clear and reasonable purpose directly related to the business. * **Data Subject Rights:** Implement mechanisms to facilitate data subjects' rights, including access, correction, deletion, withdrawal of consent, and the right to object to automated decision-making. * **Impact Assessments:** Conduct Personal Information Protection Impact Assessments (PIPIAs) for high-risk processing activities, including processing sensitive personal information, using personal information for automated decision-making, or large-scale processing. * **Cross-Border Data Transfer:** Crucial requirements must be met for transferring personal information out of China, including: * Passing a security assessment organized by the Cyberspace Administration of China (CAC). * Obtaining a personal information protection certification. * Entering into a standard contract with the overseas recipient. * Obtain separate consent from the individual. * **Data Localization (Implicit):** While not a direct localization law, for critical information infrastructure operators (CIIOs), PIPL and CSL require personal information and important data collected and generated within China to be stored within China. * **Data Classification & Localization (Data Security Law - DSL):** Recognize and comply with China's data classification system (ranging from ordinary to core data) and potential localization requirements for "important data" and "core data." b. **Cybersecurity Law (CSL):** * Applies to network operators and critical information infrastructure operators (CIIOs). Requires data localization for personal information and important data collected and generated by CIIOs in China. * Mandatory security reviews for network products and services, and adherence to multi-level protection scheme

(MLPS) requirements. c. **Data Security Law (DSL):** Establishes a national data classification and protection system. Requires security assessments for cross-border data transfers of "important data."

4.2. Compliance with Taiwan's Laws (Key focus: Personal Data Protection Act - PDPA): a. **Personal Data Protection Act (PDPA):**
Legal Basis: Collection and processing of personal data generally require specific consent from the data subject, or other legal basis (e.g., contract, legal obligation). Special requirements apply to "sensitive personal data" (e.g., medical, genetic, sexual life, criminal records).
Purpose & Notification: Data must be collected for a specific purpose, and individuals must be informed of the purpose, categories of data, and their rights.
Data Subject Rights: Individuals have rights including inquiry, review, duplication, supplementation/correction, deletion, and cessation of collection/processing/use.
Security Measures: Implement appropriate security measures to prevent theft, alteration, damage, destruction, or unauthorized disclosure of personal data.
Cross-Border Transfer: Generally permissible with appropriate safeguards (e.g., ensuring adequate protection in the recipient country, obtaining consent, or having a contractual basis). Transfers to countries prohibited by the central competent authority are not allowed.

4.3. Privacy Notices and Transparency: a. Provide distinct, clear, and comprehensive privacy notices to individuals in China and Taiwan, tailored to the specific requirements of PIPL/CSL/DSL and PDPA respectively. This includes detailed information on:
Identity and contact information of the personal information handler/data controller.
Types of personal information collected.
Purposes and methods of processing.
Retention periods.
Means and procedures for exercising data subject rights.
Specific disclosures for cross-border transfers.

****4.4. Data Breach Notification:**** a. In the event of a personal data breach affecting residents in China or Taiwan, Cirque shall comply with all applicable local data breach notification laws. This includes timely notification to affected individuals and relevant regulatory authorities (e.g., Cyberspace Administration of China, Ministry of Justice in Taiwan). (Refer to IS-CIRQ-PR-020-ASIA: Incident Response Procedure (Asia Localized)).

****5. Responsibilities (Asia-Specific)****

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- ****Regional Asia General Manager:**** Oversees compliance with Asia privacy laws and acts as a key point of contact for regional privacy matters.
- ****Regional Legal Counsel (or designated external counsel for China/Taiwan):**** Provides specific legal interpretation and guidance on China and Taiwan privacy laws, reviews privacy notices, and advises on data subject requests and breach notifications. Critical for navigating China's complex regulatory landscape.
- ****Local IT Lead (China/Taiwan):**** Responsible for implementing and maintaining technical controls to protect personal information within their respective regional systems, particularly concerning data localization and cross-border transfer requirements.
- ****Human Resources (Asia):**** Ensures compliance with employee privacy regulations specific to China and Taiwan.

****6. Training and Awareness****

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All personnel in China and Taiwan involved in handling personal information shall receive training specifically covering the detailed

requirements of China's PIPL/CSL/DSL and Taiwan's PDPA, in addition to global privacy principles.

****7. Compliance and Monitoring****

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a. `Cirque` will periodically assess its privacy practices against China and Taiwan legal requirements, including conducting regular PIPIAs/PIAs as necessary.

b. Internal audits and external assessments may be conducted to ensure ongoing adherence, with a strong focus on China's audit and compliance mechanisms.

****8. Related Documents****

8. Related Documents

- IS-CIRQ-P-017-G: Privacy Policy (Global Core)
- IS-CIRQ-P-016-G: Compliance Policy
- IS-CIRQ-PR-020-ASIA: Incident Response Procedure (Asia Localized)
- IS-CIRQ-P-001-G: Information Security Policy
- China Personal Information Protection Law (PIPL) (external reference)
- China Cybersecurity Law (CSL) (external reference)
- China Data Security Law (DSL) (external reference)
- Taiwan Personal Data Protection Act (PDPA) (external reference)
- Website Privacy Policy / Employee Privacy Notice (external facing/internal HR document, tailored for China/Taiwan)

****9. Policy Review****

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This policy will be reviewed at least annually, or sooner if there are significant changes to Cirque's Asia operations, new privacy laws/regulations in China or Taiwan, or legal interpretations affecting data privacy practices in these regions.